

English Orders here adopted, is as follows: "No proceeding is to be on the subject.

1845.

88.

any sequestrator, under any sequestration issued in pursuance thereof, is to take possession of, or in any manner intermeddle with, any part of the real or personal estate of a defendant, and no other process is to issue to compel performance of the decree without leave of the Court, which is to be obtained on motion with notice served on such defendant or his solicitor, unless the Court dispenses with such service."

The cause of its omission probably is, that the other Orders seem to effect the same object sufficiently; for there seem to be no means of getting on with such proceedings without motion, and leave of the Court, unless the Court so decree under the above Order 38.

The English Orders to which the above 33rd and 34th Orders answer, but without closely following them, are as follows. It will be at once seen that the parts not adopted, are such as would be inconsistent with the other Orders of this Court.

English Orders.

1845.

76.

“ Upon the execution of an attachment for want of answer against any defendant, or at any time within three weeks afterwards, the Plaintiff may cause such defendant to be served with a notice of motion to be made on some day not less than three weeks after the day of such service, that the Bill may be taken *pro confesso* against such defendant ; and thereupon unless such defendant has, in the meantime, put in his answer to the bill, or obtained further time to answer the same, the Court, if it so thinks fit, may order the bill to be taken *pro confesso* against such defendant, either immediately, or at such time and upon such terms and subject to such conditions, as under the circumstances of the case the Court thinks proper.”

77.

“ In cases where any defendant, either being or not being within the jurisdiction of the Court, does not put in his answer in due time after appearance entered by or for him, and the plaintiff is unable, with due diligence, to procure a writ of attachment or any subsequent process for

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In cases (*supra*) may have refused an appearance, 33, and has own solicitor. *London Gazette* named (being a section of the will be more against such a thing of such an ought, and